

Real-Time Facial Recognition in Public Spaces

Article 5(1)(d) — *Prohibited Biometric Categorisation*

Description

Law enforcement or private security deploys AI-powered cameras in shopping centres, train stations, or public squares to identify individuals in real time by matching their faces against databases of suspects, wanted persons, or persons of interest.

Why It May Violate the EU AI Act

- Real-time remote biometric identification in publicly accessible spaces is prohibited.
- Exceptions apply only to specific serious crimes and require prior judicial authorisation.
- Mass surveillance of unrelated bystanders breaches proportionality and necessity principles.
- Processing special-category biometric data without explicit consent violates GDPR and the AI Act.

Real-World Context

Several EU member states have trialled live facial recognition at events. The EU AI Act draws a hard line: retrospective use (e.g. matching CCTV footage after a crime) may be permissible under strict conditions, but live scanning of crowds is generally prohibited.

This document is for educational and compliance awareness purposes only. It does not constitute legal advice. Consult qualified EU AI Act legal counsel for specific guidance.